

Hastings Pier Act, 1960

8 & 9 ELIZ. 2 Ch. xxxviii

ARRANGEMENT OF SECTIONS

Section

1. Short title and citation.
2. Construction.
3. Interpretation.
4. Incorporation of Lands Clauses Acts.
5. Power to take lands by agreement.
6. Retention and disposal of lands.
7. Power to provide residential accommodation for employees.
8. Power to provide kiosks for retail sales.
9. Powers to provide facilities and entertainment on Company's pier.
10. Power to provide offices for Company.
11. Power to provide other offices and residential accommodation.
12. Power to charge for fishing.
13. Power to close Company's pier.
14. Charges for use of Company's pier.
15. Increase of penalty for breach of byelaws.
16. Lands to be part of undertaking but not to be within limits.
17. New works etc. to be within borough.
18. Saving for town and country planning.
19. Costs of Act.

SCHEDULES:

First Schedule—Existing Acts and Orders.

Second Schedule—Rates for use of the Company's pier.



CHAPTER xxxviii

An Act to increase the powers of the Hastings Pier Company and for other purposes. [29th July 1960.]

WHEREAS the Hastings Pier Company (hereinafter called "the Company") were incorporated by the Hastings Pier Act 1867 (hereinafter called "the Act of 1867") and by the Act of 1867 were authorised to construct a pier (hereinafter called "the pier") extending seawards from a point in the esplanade in the town of Hastings in the county of Sussex: 30 & 31 Vict.
c. clxxxvii.

And whereas by the Hastings Corporation (Pier) Order 1914 (confirmed by the Pier and Harbour Orders Confirmation (No. 2) Act 1914) the mayor aldermen and burgesses of the county borough of Hastings (hereinafter in this Act referred to as "the corporation") were authorised to purchase by agreement from the Company the shore end of the existing pier (as defined in the said Order) and to construct certain works on the lands and foreshore belonging to them or acquired under the said Order and whereas in exercise of the said powers the corporation purchased from the Company by a conveyance dated the first day of October nineteen hundred and fourteen the part of the shore end of the existing pier thereby conveyed and constructed the works authorised by the said Order of 1914: 4 & 5 Geo. 5
c. clxxi.

And whereas so much of the pier as originally authorised as is now vested in the Company (hereinafter in this Act referred to as "the Company's pier") has been erected by and is vested in and managed by the Company:

And whereas it would be of great advantage to the Company and to their employees if the Company could provide residential accommodation for such employees:

And whereas it would be of further advantage to the Company and to their undertaking if the Company could—

- (i) provide on the shore end of the pier purchased by the corporation from the Company under the said Order of 1914 kiosks for retail sales;
- (ii) provide and maintain on the Company's pier chairs coin-operated machines a bowling alley amusement arcades bars and restaurants a theatre a ballroom shops and kiosks use the Company's pier for dances concerts meetings conferences performances sports contests exhibitions puppet and other sideshows and the production and presentation of plays shows and other entertainments hire chairs on the Company's pier and permit the operation of speed and other boats therefrom and make except in respect of speed and other boats such reasonable charges as may be determined for the use of such facilities and for admission to such buildings and places;
- (iii) erect or use otherwise than in pursuance of powers already possessed by them a building for offices and residential accommodation;
- (iv) close the whole or any part of the Company's pier:

And whereas the maximum rates which the Company may charge to passengers and promenaders using the Company's pier were determined by the Act of 1867 and have not since been altered:

And whereas the said maximum rates are no longer adequate:

And whereas the maximum penalty which may be imposed and recovered for a breach of the Company's byelaws was fixed by section 26 of the Hastings Pier Order 1890 (scheduled to and confirmed by the Pier and Harbour Orders Confirmation (No. 1) Act 1890) and has not since been altered:

And whereas the said maximum penalty is no longer sufficient:

And whereas the charge made to persons using the Company's pier for the purpose of fishing is no longer adequate:

And whereas it is expedient that the Company should be empowered to provide residential accommodation for their employees kiosks for retail sales facilities and entertainments on the Company's pier offices in a building which would include offices to let and residential accommodation and that the maximum rates chargeable for use of the Company's pier by passengers promenaders and persons fishing should be increased and that the

maximum penalty which may be imposed and recovered for a breach of the Company's byelaws should be increased and that the further powers in the Act contained should be conferred upon the Company:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Hastings Pier Act 1960 and Short title the existing Acts and Orders and this Act may be cited together and citation. as the Hastings Pier Acts and Orders 1867 to 1960.

2. The existing Acts and Orders as amended by this Act Construction. and this Act shall be construed and read together as one Act except and in so far as might be inconsistent with or repugnant to the purposes thereof.

3. In this Act unless the context otherwise requires words and Interpretation. expressions to which by the existing Acts and Orders or by any enactment incorporated therewith or applied thereto meanings are assigned have the same respective meanings and—

“ the Act of 1867 ” means the Hastings Pier Act 1867 ;

“ the Company ” means the Hastings Pier Company;

“ the existing Acts and Orders ” means the Acts and Orders set out in the First Schedule to this Act;

“ the corporation ” means the mayor aldermen and burgesses of the county borough of Hastings;

“ the Company's pier ” means so much of the pier and works connected therewith as were constructed by the Company under the existing Acts and Orders and is now vested in the Company;

“ the corporation's pier ” means the shore end of the pier purchased by the corporation from the Company under the Hastings Corporation (Pier) Order 1914 and the works constructed by the corporation in exercise of the powers in that behalf conferred by the said Order of 1914;

“ the Order of 1890 ” means the Hastings Pier Order 1890 which was scheduled to and confirmed by the Pier and Harbour Orders Confirmation (No. 1) Act 1890.

Incorporation
of Lands
Clauses Acts.

8 & 9 Vict. c. 18.

4. The Lands Clauses Acts except so much thereof as relates to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoter of the undertaking and except sections 127 to 131 of the Lands Clauses Consolidation Act 1845 are (so far as the same are applicable to the purposes and are not inconsistent with or varied by the provisions of this Act) hereby incorporated with and form part of this Act.

Power to take
lands by
agreement.

5. The Company may acquire by agreement whether by way of purchase or lease any lands which they may require to hold and use for the purposes of this Act.

Retention and
disposal of
lands.

6.—(1) The Company may for the purposes of and subject to the provisions of this Act—

- (a) retain and hold and use for such time as they think fit any land or interest in land acquired by them under this Act;
- (b) sell lease exchange or otherwise dispose of any such land or interest in such manner and for such consideration and on such terms and conditions as they think fit;
- (c) sell exchange or dispose of any rents reserved on the sale lease exchange or other disposition of any such land or interest.

(2) Nothing in this Act shall release the Company or any person purchasing or acquiring any land or interest in land from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which the land or interest has been conveyed or leased to or otherwise acquired by the Company or to or by any persons from or through whom the Company have derived title to it.

Power to
provide
residential
accommoda-
tion for
employees.

7.—(1) The Company may from time to time acquire or provide and maintain residential accommodation for occupation by employees of the Company on such terms and conditions (including terms as to payment) as the Company shall think fit.

(2) The Company may erect such buildings and execute such works as may be necessary or expedient in connection with the provision and maintenance of residential accommodation under this section.

Power to
provide
kiosks for
retail sales.

8.—(1) The Company may from time to time acquire or provide maintain furnish and equip kiosks for retail sales.

(2) The Company may erect such buildings and execute such works as may be necessary or expedient in connection with the acquisition provision maintenance furnishing and equipping of

kiosks under this section and references in the following provisions of this section to a kiosk so acquired or provided shall include references to any buildings erected or works executed under this subsection.

(3) The powers conferred on the Company by the foregoing provisions of this section shall not be exercised except on the Company's pier or with the consent of the corporation on the corporation's pier and such consent may be given on such terms and conditions as the corporation may think proper.

(4) The Company may—

- (a) themselves manage a kiosk acquired or provided under this section;
- (b) let it for such consideration and on such terms and conditions as they think fit;
- (c) by themselves or any person appointed by them in that behalf apply for and hold licences for the sale of tobacco at any such kiosk.

9.—(1) The Company may provide and maintain on the Company's pier or any part thereof chairs and coin-operated machines and may further there construct provide furnish equip maintain manage and operate a bowling alley amusement arcades bars and restaurants a theatre a ballroom and shops.

Powers to provide facilities and entertainment on Company's pier.

(2) The Company may use the Company's pier or any part thereof for dances concerts meetings conferences performances sports contests exhibitions puppet and other sideshows as well as for the production and presentation of plays shows and other entertainments.

(3) The Company may hire chairs on the Company's pier and permit the operation of speed and other boats therefrom.

(4) The powers set out in the preceding subsections of this section shall be exercisable either by the Company or by lessees or licensees of the Company and the Company or their lessees or licensees may make except in respect of speed and other boats such reasonable charges as they may determine for use of the facilities and for admission to the buildings or places referred to in the said subsections.

10.—(1) The Company may acquire or provide maintain furnish and equip a building for use as the offices of the Company.

Power to provide offices for Company.

(2) The Company may execute such works as may be necessary or expedient in connection with the provision maintenance furnishing and equipping of a building under this section and

references in the next following section of this Act to a building acquired or provided under this section shall include references to any works executed under this subsection.

(3) The powers conferred by this section shall be in addition to and not in derogation of the powers possessed by the Company under section 20 of the Harbours Docks and Piers Clauses Act 1847 as applied by section 2 of the Act of 1867.

Power to provide other offices and residential accommodation.

11.—(1) The Company may within any building acquired or provided under the immediately preceding section of this Act provide maintain furnish and equip separate and apart from the Company's offices other offices and residential accommodation and may for that purpose acquire or erect a building of such size as to accommodate the other offices and residential accommodation.

(2) The Company may execute such works as may be necessary or expedient in connection with the provision maintenance furnishing or equipping of the other offices and residential accommodation under this section and references in the following provisions of this section to the other offices and residential accommodation provided under this section shall include references to any works executed under this subsection.

(3) The Company may let the other offices and residential accommodation for such purposes as may be approved by the corporation and for such consideration and on such terms and conditions as the Company thinks fit.

Power to charge for fishing.

12. The Company may make to persons using the Company's pier for the purpose of fishing a separate charge therefor which charge shall be in addition to any charge made under the provisions of the Second Schedule to this Act and shall not exceed for each and every time a person so uses the Company's pier the sum of two shillings.

Power to close Company's pier.

13.—(1) The Company may but not for more than six months consecutively close the whole or any part of the Company's pier against the public at such times and for such periods as the Company thinks fit.

(2) During at least two days before the day on which the Company's pier is to be closed the Company shall exhibit conspicuously at the entrance to the Company's pier and at the pier head a notice of their intention to close the pier under this section.

(3) Notwithstanding the provisions of subsections (1) and (2) of this section mariners shall in case of emergency be permitted to land at the Company's pier at any time.

14. There shall be substituted for the provisions of Part I of the schedule annexed to the Act of 1867 (which said Part deals with the rates on passengers and promenaders using the Company's pier) the provisions of the Second Schedule to this Act and Part I of the said schedule to the Act of 1867 is hereby repealed.

Charges for use of Company's pier.

15.—(1) In section 26 of the 1890 Order (which empowers the Company to make byelaws for the regulation and control of persons using the Company's pier) for the words " forty shillings " there shall be substituted the words " five pounds ".

Increase of penalty for breach of byelaws.

(2) Notwithstanding the provisions of the existing Acts and Orders relating to the procedure for the making and confirmation of byelaws by the Company the provisions of subsections (3) to (6) of section 250 and section 252 of the Local Government Act 1933 shall apply to all byelaws to be made by the Company in respect of its undertaking and in the application of such last-mentioned provisions the Minister of Transport shall be the confirming authority.

16. Any land or building acquired or erected under the powers conferred by this Act shall be deemed to be part of the undertaking of the Company but any such land or building shall not form part of the Company's pier and nothing in this Act shall extend the limits within which the powers of the pier master may be exercised.

Lands to be part of undertaking but not to be within limits.

17. Section 135 (Hastings Pier to be within borough) of the Hastings Corporation (General Powers) Act 1937 shall extend and apply to any work constructed or building or other structure erected under the powers of this Act within the limits of the Company's pier as if it were a work constructed in pursuance of the powers conferred on the Company contained in any of the enactments mentioned in that section.

New works etc. to be within borough.

18. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Saving for town and country planning.

19. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

SCHEDULES

FIRST SCHEDULE

EXISTING ACTS AND ORDERS

The Act of 1867.

The Hastings Pier Order 1871.

The Order of 1890.

The Hastings Pier Act 1937.

SECOND SCHEDULE

RATES FOR USE OF THE COMPANY'S PIER

	£	s.	d.
For every passenger or other person who shall land on the Company's pier from or embark from it on board of any ship vessel or boat for each and every time any sum not exceeding	0	1	0
For every person who shall use the Company's pier for the purposes of walking for exercise pleasure or any other purpose (except for embarking or disembarking) for each and every time any sum not exceeding	0	1	0
For every bath chair (including occupant) taken on the Company's pier for each and every time any sum not exceeding	0	0	6
For every perambulator (including occupant) taken on the Company's pier for each and every time any sum not exceeding	0	0	6
For every master of any ship vessel or boat using the Company's pier for the purpose of going to or returning from his own ship vessel or boat an annual sum not exceeding	3	0	0

PRINTED BY THE SOLICITORS' LAW STATIONERY SOCIETY, LTD., FOR

SIR JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 9d. net

PRINTED IN ENGLAND